

25STCV35065 25STCV35065

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Case Number: 25STCV35065 Hearing Date: August 13, 2026 Dept: 14

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

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DEPARTMENT 14

GIOVANNI CALABRESE,

Plaintiff,

v.

ARKEMA, INC., et al.

Defendants.

Case No. 25STCV35065

Hearing Date: August 13, 2026

Time:

9:00 a.m.

¿ [TENTATIVE] ORDER

RE:¿

COLGATE-PALMOLIVE COMPANY'S MOTION FOR SUMMARY
JUDGMENT AND SUMMARY ADJUDICATION.

I.

Background

On December 2, 2025, Plaintiff Giovanni Calabrese filed his complaint for personal injury alleging he developed mesothelioma from direct exposure to asbestos-contaminated talc products he and his wife used throughout his life beginning in 1968 in California, Arizona, and Montana.

On June 18, 2026, Defendant Colgate-Palmolive Company ("Colgate" or "Defendant") moved for summary judgment, arguing that it presents affirmative evidence that Mennen talcum powder products did not contain asbestos such that Plaintiff could not have been exposed to an asbestos-containing material for which it was responsible. Colgate further argues that even if trace quantities of asbestos were present in its products, these traces would be insufficient to constitute a substantial factor in causing Plaintiff's mesothelioma. In the alternative, Colgate argues that Plaintiff's discovery responses are factually devoid as specific facts supporting the demand for punitive damages.

On July 24, 2026, Plaintiff opposed, arguing that Colgate failed to meet its initial burden and that his evidence is sufficient to raise a triable issue of material fact regarding his exposure to asbestos for which Colgate is responsible.

On July 31, 2026, Colgate replied, arguing that Plaintiff failed to offer proof that any talcum powder product he used from Colgate was contaminated with asbestos.

Colgate meets its burden to show that its products were asbestos-free during the relevant time period through the expert declaration of Dr. Sanchez. Plaintiff presents sufficient

affirmative evidence to create a triable issue of material fact as to asbestos contamination within Mennen talcum powder products during Plaintiff's exposure period through the expert testimony of Dr. Longo, and Dr. Compton. Therefore, Colgate's motion for summary judgment is denied.

As to punitive damages, Colgate meets its burden to show that Plaintiff's factually devoid discovery responses support an inference that Plaintiff lacks and cannot reasonably obtain evidence to support his demand for punitive damages. Plaintiff's evidence presented in opposition to the motion is sufficient to create a triable issue of material fact over whether Colgate knew of the hazards posed by its talcum powder products and continued selling them without warnings. Therefore, Colgate's motion for summary adjudication of the demand for punitive damages is denied.

II.

Judicial Notice

Colgate

moves for judicial notice of the complaint in this action and Plaintiff's request for dismissal of the third and fourth causes of action dated February 13, 2026. The requests are granted under Evidence Code, § 452, subdivision (d).

III.

Evidentiary Objections

Plaintiff's Objections

Overruled

1. Declaration

of Matthew Sanchez, Ph.D., ¶ 10, page 3, line 19 – page 4, line 2:

"Presently, there is no scientific methodology and no available data that would allow an expert to: (i) determine how often (other than perhaps sporadically) "asbestos" could be present in the talc ore; (ii) conclude that any particular lot or shipment of talc ore for which there are not available test results contained "asbestos";

(iii) conclude that any particular product manufactured with talc from Val Germanasca, North Carolina, or Montana contained “asbestos,” absent testing of the actual product; or (iv) conclude that talc from Val Germanasca, North Carolina, or Montana would have contained “asbestos” regularly, frequently, consistently, or any other qualitative description implying that shipments of ore that did not test positive for “asbestos” can be assumed to contain it.”

Plaintiff objects to this

portion of Dr. Sanchez’s declaration on the grounds that Dr. Sanchez’s opinion was rejected by Strobel and Bader and because Plaintiff disagrees with Dr. Sanchez’s opinion of certain testing methods. This objection pertains to the weight of Dr. Sanchez’s opinion, not the admissibility of the evidence. The objection is overruled.

3, 16, 17. Plaintiff’s

objection to paragraphs 14, 43, and 44 of Dr. Sanchez’s declaration is overruled for the same reasons as objection number 1.

4. Sanchez

Decl. ¶ 15, “My opinion that Mennen Shave Talc did not contain asbestos is based in part on my review of various governmental and academic studies on talc sourced from Val Germanasca, Italy; Regal and Hitchcock, North Carolina; and Willow Creek and Beaverhead, Montana. My review and interpretation of these studies leads to me to conclude that these source mines do not contain asbestos” is not relation of case specific hearsay under *People v. Sanchez* (2016) 63 Cal.4th 665. Dr. Sanchez is not here describing the specific findings of any prior testing done by any non-testifying experts, rather he is relying upon these authorities to come to a general opinion.

5-8, 10-15, 20-24, 26, 31-35.

Overruled

for the same reasons as objection number 4.

25, 27, 28. Overruled

for the same reasons as objection numbers 1, 4.

29, 30. Overruled

for the same reasons as objection number 1.

Sustained

2. Sanchez Decl., ¶11, and
the exhibit he purports to summarize, are inadmissible hearsay.

18, 19. Sanchez

Decl. ¶ 46 lacks foundation and is irrelevant. That the FDA regards talc as safe as a food additive does not support the statement that the FDA recognizes talc as safe in cosmetic products.

36. Sahmel Decl. Ex. K,

“Declaration of Paul Joseph Vincenti, Ph.D., signed for the Basili v. Avon Products, Inc., et al., matter in Massachusetts, C.A. No. 23- 0784” is inadmissible on this motion. This is a declaration made by Defendant’s employee Dr. Vincenti in his capacity as a corporate representative. Accordingly, he is limited to facts within his personal knowledge. Because his declaration states he was only hired to work for Mennen (later Colgate-Palmolive) from 1982 to 2017, he lacks personal knowledge of any facts prior to his employment.

Defendant’s Objections

Overruled

Exhibit 3: Defendant

Colgate Palmolive Company, as a successor-in-interest to The Mennen Company’s Verified Responses Standard Interrogatories served in Scott v. Albertsons Companies, Inc., et al., Los Angeles Superior Court, Case No. 25STCV05372 (Global objection), in its entirety. Colgate objects to this exhibit on the ground that it is irrelevant, lacks foundation, and is hearsay. The exhibit is relevant to Plaintiff’s claims because the highlighted portion on page 10 of the exhibit describes Colgate’s relationship with its predecessor, the Mennen Company. Colgate fails to explain why the exhibit lacks foundation. Although the exhibit is hearsay, it is nevertheless admissible because oppositions to motions for summary judgment may be supported by interrogatory responses. (Code Civ. Proc. § 437c, subd. (b)(2).)

Colgate’s objections to Exhibits

7, 14, and 15 are overruled for the same reasons as Exhibit 3.

Exhibit 16:

Mennen Sales Bulletin, Bulletin #11, dated April 1, 1976 re: Corporate Position

(Global objection), in its entirety.

Colgate objects to this

exhibit on the grounds that it is irrelevant and without foundation. Colgate argues that the sales bulletin fails to demonstrate that the products Plaintiff encountered contained asbestos or that Mennen engaged in conduct supporting an award of punitive damages. The exhibit is relevant to whether Mennen knew of the potential for asbestos contamination in consumer talcum powder products. The objection is overruled.

Colgate's objection to Exhibit

17 is overruled for the same reason as Exhibit 16.

Exhibit 21:

Defendant's patent filed with the U.S. Patent Office, bearing U.S. Pat. No. 4,407,798, dated October 4, 1983(Global objection), in its entirety.

Colgate objects to this

exhibit on the grounds that it is irrelevant, lacks foundation, and is hearsay. The exhibit is relevant to whether Mennen knew alternatives to talc were available and knew that other companies were introducing such alternatives. As for the hearsay objection, Plaintiff did not introduce the exhibit to prove the truth of the matters asserted in the patent but to show that Mennen knew of alternatives to talc.

Exhibit 32: Declaration

of Steven Compton, Ph.D. in Scott v. Albertsons Companies, Inc., et al., Los Angeles Superior Court, Case No. 25STCV05372 (Global objection), ¶¶ 1-59, in its entirety, and all exhibits attached thereto.

Colgate objects to the

entirety of the declaration, including declarations and exhibits, on the grounds that it lacks foundation, is irrelevant, lacks authentication, and is hearsay. Colgate fails to explain why any particular part of the declaration or accompanying exhibits lacks foundation or is inadmissible. The objections are overruled. Colgate's argument that the attachments to the declaration were not authenticated is without merit because the exhibits are properly authenticated by Compton in his declaration.

Colgate also objects on

the grounds that the declaration violates California Rules of Court, rule 3.1115 because it indicates the declaration was prepared for another case. The declaration does not violate rule 3.1115 because it properly states the name of the declarant and specifies the motion it supports, albeit in another case.

Colgate's objections to Exhibits

33, 34, 35, and 36 are overruled for the same reasons as Exhibit 32.

Sustained

Exhibit 4: Relevant

pages of the transcript of the Defendant's corporate representative, Daniella Urbach-Ross, Ph.D., dated August 5, 2016 (Vol. 1), and September 2, 2016 (Vol. 2), taken in Depoian v. American International Industries, et al., Los Angeles Superior Court, No. BC607192 (Global objection), in its entirety.

This testimony is

hearsay. Plaintiff fails to identify a valid hearsay exception to support the admissibility of this prior testimony. Plaintiff fails to rebut the general rule against the admissibility of former deposition testimony. (Berroteran v. Superior Court (2022) 12 Cal.5th 867, 895 ["The party urging admission of deposition testimony bears the burden of rebutting the general rule by submitting appropriate information justifying the admission of designated deposition testimony."].) Plaintiff offers no evidence or argument to support the admissibility of this deposition and do not address whether this deposition was intended to serve as a trial preservation transcript, whether a subsequent agreement was made to use the deposition as trial testimony, or that any of the Berroteran factors bear in favor of the admissibility of the deposition.

The objection is sustained.

Colgate's objections to Exhibits

5, 6, 8, 9, 10, 18, 19, and 25 are sustained for the same reasons as Exhibit 4.

Exhibit 11: Relevant

pages of the transcript of trial testimony of Dr. Steven Compton given on May 4, 2018, in Anderson v. Borg Warner Corporation, et al., Los Angeles Superior Court, Case No. BC666513 (Global objection), in its entirety.

Colgate objects to this

testimony on the grounds that it is irrelevant, lacks foundation, and is hearsay. Dr. Compton's trial testimony is relevant to his testing of the Italian talc used in the Mennen talcum powders at issue. As for the hearsay objection, former testimony is not inadmissible as hearsay if the declarant is unavailable and a party in the former action had the right and opportunity to cross-examine the declarant with an interest and motive similar to that which the party against whom the testimony is offered has. (Evid. Code § 1292.) Here, Dr. Compton is available because he provided a declaration to support Plaintiff's opposition. Therefore, the transcript is hearsay and the exception under Evidence Code section 1292 does not apply.

Colgate's objection to Exhibit

22 is sustained for the same reason as Exhibit 11.

Exhibit 12:

Copy of a Letter to the Editor written by Dr. Lewin, Professor of Chemistry at New York University, published in the Wall Street Journal (Global objection), in its entirety. This exhibit is unauthenticated. There is no evidence that the document is what Plaintiff purports it to be.

Colgate's objections to Exhibit

13, 20, 23, 24, 26, 27, 30, and 31 are sustained for the same reason as Exhibit 12.

Exhibit 28: U.S.

Food & Drug Administration, Cosmetics, Guidance & Regulation, Laws & Regulation (Global objection), in its entirety. This exhibit is hearsay and no exception to the rule against hearsay applies.

Colgate's objection to Exhibit

29 is sustained for the same reason as Exhibit 28.

IV.

Discussion

A.

Legal Standard

A defendant seeking

summary judgment must "conclusively negate[] a necessary element of the

plaintiff's case, or . . . demonstrate[] that under no hypothesis is there a material issue of fact that requires the process of trial." (Guz v. Bechtel Nat. Inc. (2000) 24 Cal.4th 317, 334.) To show that a plaintiff cannot establish an element of a cause of action, a defendant must make the initial showing "that the plaintiff does not possess, and cannot reasonably obtain, needed evidence." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 854.) "The defendant may, but need not, present evidence that conclusively negates an element of the plaintiff's cause of action. The defendant may also present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence – as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing." (Id. at p. 855.) " 'If plaintiffs respond to comprehensive interrogatories seeking all known facts with boilerplate answers that restate their allegations, or simply provide laundry lists of people and/or documents, the burden of production will almost certainly be shifted to them once defendants move for summary judgment and properly present plaintiff's factually devoid discovery responses.' " (Weber v. John Crane, Inc. (2006) 143 Cal.App.4th 1433, 1440.)

B.

Causation

In

asbestos litigation, a plaintiff is required to show causation. A plaintiff must show "some threshold exposure to the defendant's defective asbestos-containing products" and must further establish in "reasonable medical probability" that a particular exposure or series of exposures was a "legal cause" of his injury, i.e., a substantial factor in bringing about the injury. (Rutherford v. Owens-Illinois, Inc. (1997) 16 Cal.4th 953, 982.) "[T]he proper analysis is to ask whether the plaintiff has proven exposure to a defendant's product, of whatever duration, so that exposure is a possible factor in causing the disease and then to evaluate whether the exposure was a substantial factor." (Lineaweaver v. Plant Insulation Co. (1995) 31 Cal.App.4th 1409, 1416.)

Where asbestos was not an

intended ingredient in a talc product, plaintiffs bear the additional burden of showing that it is "more likely than not that the talc product was contaminated with asbestos during the time the plaintiff used it." (LAOSD Asbestos Cases (2020) 44 Cal.App.5th 475, 489 [hereinafter "Gibbons"].) Evidence sufficient to support this finding includes "long term use of a talcum powder

product alleged to contain asbestos by a mesothelioma sufferer who was not exposed to any other known source of asbestos above background asbestos levels that are ever-present in the environment, together with expert testimony reporting positive test results for the presence of asbestos in ore from the sources used to manufacture the product.” (Strobel v. Johnson & Johnson (2021) 70 Cal.App.5th 796, 815.) “In the absence of evidence explaining how asbestos in the source ore would have been eliminated in the process of mining and then milling talc, that is enough to support more than a mere possibility that the accused product... was a substantial factor in causing [plaintiff] to develop mesothelioma.” (Ibid.)

Colgate argues that it is entitled to summary judgment because its evidence shows that during the relevant exposure period Mennen talc powders were asbestos free. Specifically, Colgate argues: “The mines from which Mennen sourced its talc are not (and were not) contaminated with asbestos. In addition, historic testing of Mennen talcum powder products by the Food and Drug Administration (‘FDA’) has demonstrated that they were not contaminated with asbestos. Plaintiff has not adduced (and cannot adduce) evidence that the talc used in any particular container of Mennen Baby Magic or Mennen body powder Plaintiff actually used or was otherwise exposed to was contaminated with asbestos. In a similar case, Berg v. Colgate Palmolive Co. (2019) 42 Cal.App.5th 630, the court affirmed summary judgment in Mennen’s favor because the plaintiff had failed to adduce evidence ‘that all or most’ of the Mennen products sold during the time period he used such products were contaminated with asbestos.” (Motion at p. 5.)

1. Defendant’s

Burden: Affirmative Evidence

Colgate presents sufficient evidence to negate Plaintiff’s threshold exposure to an asbestos-containing material for which Colgate was responsible. In support of its argument, Colgate relies on the declaration of Dr. Matthew Sanchez, an expert Geologist. Dr. Sanchez opines: “In my expert opinion, talc used in Mennen Shave Talc to which Plaintiff Giovanni Calabrese may have been exposed, was not contaminated with asbestos. This conclusion is supported by decades of academic and government research that has concluded cosmetic talcum powder, including that from the source mines used in Mennen’s products, is free of asbestos. This conclusion is also confirmed by my review, analysis, and interpretation of the historic

analytical testing record. These findings are consistent with all literature regarding Mennen's source mines." (Sanchez Decl. ¶ 57.)

Dr. Sanchez bases

his opinion on a review of the geology of the source mines used in the manufacture of Mennen talc products between 1967 and 1999, Dr.

Sanchez's personal testing of Italian talc and observation of the mining process, and historical product testing of Mennen products.

Most pertinently, Dr. Sanchez describes the testing of the talc

from Italy as follows: "I visited the mining and milling operations at

Val Germanasca from November 9 to November 12, 2015. The focus of the

visit was to (1) obtain samples from both the mining and milling operations

that are representative of the current mining operation, (2) assess the current

talc ore and surrounding country rock for asbestos mineralization, and (3)

understand the mine's current and past programs as they relate to asbestos

testing to ensure product quality. I took a total of twenty (20) samples during

the site visit, which represented the talc ore, non-talc waste rock (both

siliceous and carbonaceous lenticular inclusions were sampled), milled product,

country rock where amphiboles were observed, and talc from both French and

Chinese sources that are also milled at the Malanaggio plant. The

samples were analyzed by XRD, PLM, and TEM. In no sample were asbestiform

amphiboles or chrysotile observed. My findings are consistent with the

mineral characterization of Italian talc as described by Pooley et al. (1972)

and Peretti (1966) from at least the 1950s and through the 1970s. Pooley,

F.D., et al., An Examination of Italian Mine Samples and Relevant Powders

(1972) (a true and correct copy of which is attached as Exhibit 10); Peretti,

L., Geology and Genesis of the Talc Deposits in the Pinerolese. Bulletin

of the Subalpine Mining Association – Year III No. 3-4 September – December

1966 (1966) (a true and correct copy of which is attached as Exhibit 11)."

(Sanchez Decl. ¶ 33.)

In opposition,

Plaintiff does not substantively address Dr. Sanchez's declaration.

Plaintiff argues that Colgate failed to shift its initial burden before

discussing the affirmative evidence they present in opposition to Colgate's motion.

(Opp. at pp. 14-15.) Although Plaintiff objected to Dr. Sanchez's

opinions, the objections consist of arguments disagreeing with Dr. Sanchez's opinions

rather than the admissibility of his opinions. The court overrules such

objections. The only objections the court sustains are paragraphs of Dr.

Sanchez's declaration in which he directly restates the

opinions of prior researchers, his general description of the chain of inferences required to move from asbestos contamination of source ore to contamination of the final ore, the paragraphs regarding the FDA's practices, and some specific references to testing protocols which were not supported by the exhibits cited. Sustaining these objections does not substantively impact the validity of Dr. Sanchez's ultimate opinions in this case.

The court finds that Colgate satisfied its initial burden to negate Plaintiff's exposure to an asbestos-containing material for which Colgate is responsible. Dr. Sanchez's ultimate opinion that "talc used in Mennen Shave Talc to which Plaintiff Giovanni Calabrese may have been exposed, was not contaminated with asbestos" is not rendered inadmissible through any of the objections the court sustains as to Dr. Sanchez's declaration. While Plaintiff presents affirmative evidence in opposition which purports to create a triable issue of material fact, there does not appear to be any evidence or argument to controvert Dr. Sanchez's opinion on the Mennen products at issue in this case. Dr. Sanchez's declaration appears to be functionally identical to his prior declaration in Gibbons regarding Johnson Baby Powder. There, the Court of Appeal held: "The Sanchez declaration established 'a prima facie showing of the nonexistence of any triable issue of material fact' [Citation]. As mentioned, appellants succeeded in excluding only 12 paragraphs from the expert's declaration. Evidence in the remaining 98 paragraphs, summarized² ante, provided prima facie proof the talc products [plaintiff] used were not adulterated with asbestos and did not expose her to asbestos. The burden shifted to appellants to make a contrary prima facie showing." (Id. at p. 488.) Accordingly, Colgate satisfies its initial burden. The burden shifts to Plaintiff to establish a triable issue of material fact as to Plaintiff's threshold exposure to an asbestos-containing material for which Colgate was responsible.

2. Plaintiff's Burden:

Plaintiff satisfies his burden to produce evidence sufficient to create a triable issue of material fact as to his exposure to an asbestos-containing material for

which Colgate was responsible. In opposition, Plaintiff primarily relies on the expert declarations of Dr. William Longo and Dr. Steven Compton to create a triable issue of material fact as to the asbestos content of Mennen talcum powder and Baby Magic baby powder ("Baby Magic") during Plaintiff's exposure period. Both Dr. Longo and Dr. Compton conducted testing of the products at issue in this case, Mennen Shave Talc and Baby Magic. As to his direct testing of these products, Dr. Longo states:

"My laboratory, MAS, has now reported on testing of approximately 21 containers of Mennen talc-containing loose powder products: Mennen Baby Magic, Mennen Baby Powder, Mennen Shave Talc. This number will continue to increase as I obtain and test additional Mennen talc products. Of the 21 total containers, 16 are Mennen Baby Magic powder products that cover a span of decades, spanning approximately 1965 through the 1990s, representing talc sourced from Italy and Montana. 3 of the 21 total containers are Mennen Shave Talc, with two containers from the 1980s to early 1990s vintage and one container from the 1950s. The remaining 2 containers are Mennen Baby Powder that are of a vintage prior to the 1970s...

Of the 21 Mennen talcum powder containers, 17 containers came from Mennen's Heritage Room and were produced to my laboratory from Mennen's retained expert, R.J. Lee Group. Mennen was compelled to produce these 17 containers by court orders. The remaining 4 containers were obtained from three law firms: Weitz (one container of Baby Magic sealed), Lanier Law Firm (one container Mennen Shave Talc owned by a plaintiff, Ms. Spiegelman), and Philips Paolicelli (one container of Mennen Baby Powder, one container Mennen Shave Talc). The results of my laboratory's analysis of these 21 containers is contained in my reports dated March 31, 2022, May 26, 2022, June 3, 2022, June 24, 2022, January 13, 2023, and February 1, 2023...The asbestos analysis results on the four containers of Mennen talcum powder products provided from law firms are consistent with the asbestos analysis results on the 17 containers of Mennen talcum powder products produced by Mennen from the Heritage Room. A true and correct copy of a summary chart of my laboratory's testing of Mennen talc products is attached hereto as Exhibit V. I hereby adopt and incorporate that chart into this declaration as though it was set forth in full.

To date, we have identified regulated asbestos in 21 of 21 containers of Mennen talc powder products, or 100% of the Mennen talc products tested. We identified chrysotile

in all of the Mennen containers and amphibole asbestos in 10 of 21 of the Mennen containers.”

(Longo Decl. ¶¶ 49-51.)

As to his direct testing of Mennen Baby Magic products, Dr. Compton's declaration states:

“The presence of asbestos in finished products is also illustrated by the results of product testing for products sourced from mines in which asbestos has been documented. My laboratory, MVA Scientific Consultants, analyzed and reported on 20 containers of Mennen Baby Magic talcum powder...

According to Dr. Urbach-Ross, Italian talc was used when the product was first developed in the early 1900s (with Whittaker, Clark & Daniels [WCD] as the only known supplier of talc to Mennen until some point in the 1980s when they began purchasing from additional sources). According to WCD corporate representative Theodore Hubbard, WCD supplied talc to Mennen for most of the 20th century (early 1900s to 1997). Dr. Vincenti testified that all Mennen talcum powder products (e.g. Mennen branded baby powder, bath powder, and shave talc) would have shared the same talc source at any given point in time: exclusively Italian talc up to the late 1950s, some Italian or Italian/North Carolina blend from the late 1950s to the early 1960s, and either Italian or an Italian/Montana blend from 1965 until 1999...

One of the 20 Baby Magic samples I personally analyzed was provided to MVA by the Simon Greenstone Panatier law firm and belonged to their client, Irma Ramirez, who originally purchased the bottle which was imported from Mexico. Based on a reference to Colgate-Palmolive on the label, this sample is estimated to have been manufactured between 1992 and 1999. MVA analyzed the Mennen Baby Magic powder by polarized light microscopy (PLM) and transmission electron microscopy (TEM). A true and correct copy of MVA Project 13836, Investigation of Baby Magic Mennen Talc Sample for Asbestos Irma Ramirez Case dated December 2, 2020, is attached here in full and incorporated by reference as Exhibit 23. My laboratory detected anthophyllite asbestos fibers in the sample of Baby Magic Mennen talcum powder at a concentration of approximately 6.5 million fibers per gram.

Three other

bottles of Baby Magic were purchased by the Meirowitz & Wasserberg law firm from three different third-party sellers located in Arizona (imported from Mexico), Michigan, and New Hampshire. The bottle imported from Mexico is estimated to have been manufactured between 1992 and 1999. The other two bottles are estimated to have been manufactured between the mid-1970s and 1992. MVA analyzed the Mennen Baby Magic powders by PLM and TEM. A true and correct copy of MVA Project 14696, Examination of Mennen Baby Magic Talc for Asbestos, dated 24 February 2023, is attached here in full and incorporated by reference as Exhibit 10. My laboratory detected tremolite asbestos fibers in all three samples of Mennen Baby Magic talcum powder ranging from approximately 27 million to 84 million fibers per gram.

The remaining 16

samples were splits of historic (pre-1992) Mennen Baby Magic product retains provided to MVA by the defendant-retained R.J. Lee Group laboratory in response to a court order. These 16 samples were never owned or handled by an end user. The samples were still sealed or had been opened exclusively for purposes of laboratory testing. MVA analyzed the 16 Mennen Baby Magic product samples by PLM and TEM. Select samples were prepared using heavy liquid density separation (HLDS) and analyzed once more by TEM. A true and correct copy of MVA Project 15147, Examination of Baby Magic Talcum Powder for Asbestos, dated 11 January 2024, is attached here in full and incorporated by reference as Exhibit 15. My laboratory detected tremolite/actinolite asbestos fibers in 13 of the 16 samples of Mennen Baby Magic talcum powder at concentrations ranging from approximately 14 thousand to 280 million fibers per gram."

(Compton Decl.

¶¶39-43.)

Based on these

declarations, Plaintiff argues that he presents sufficient evidence to create a triable issue of material fact as to his exposure to an asbestos-containing product for which Colgate is responsible. Plaintiff argues that because the talc used in Mennen talcum powder products was the same and consistently tested positive for asbestos, all Mennen products containing this talc, including the products Plaintiff used, would also contain asbestos. (Opp. at pp.5-6 ["Dr. Longo's and Dr. Compton's findings of asbestos in Mennen talcum powder are consistent with independent historical positive testing of Mennen talc powders

(all made with the same talc), including the findings of Professor Seymour at New York University on behalf of the FDA in 1972, researchers in the Department of Geology at Bowling Green State University in 1972, and Drs. Langer and Rohl of Mt. Sinai School of Medicine in 1976. (AUMF 66, 78-89.) Based on his testing of talc ore used to make Mennen talcum powders and finished Mennen talcum powder, his review of other laboratory testing, and historic testing of the talc ore used to make Mennen talcum powders, Dr. Compton opined to a reasonable degree of scientific certainty that the talc used to make Mennen talcum powders contained asbestos and therefore consumer talcum products made with that asbestos-containing talc, like Mennen talcum powders, would contain asbestos. (AUMF 64.)”].)

In reply, Colgate

contends that this evidence is insufficient to create a triable issue of material fact as to Plaintiff’s exposure to an asbestos-containing product for which it is responsible. Colgate makes two primary arguments. First, Colgate argues that Plaintiff failed to offer non-speculative evidence that the Mennen products Plaintiff used was contaminated with asbestos. (Reply at p. 7, [“crediting all of Plaintiff’s evidence, the very most Plaintiff could hope to demonstrate is a possibility that he was exposed to tainted Mennen Body Powder or Baby Magic. This is the exact kind and quality of evidence presented in opposition to the motion for summary judgment in Berg and so the same result should follow. Plaintiff here, presumably conceding there is no defense to Berg, ignores Mennen’s arguments based thereon entirely. This is because the issue is not the number of containers of Mennen body powder or Baby Magic used, but whether Plaintiff can demonstrate, based on non-speculative evidence, that the specific containers he or his ex-wives used were contaminated with asbestos. Here, Plaintiff cannot prove contamination of the specific containers at issue.”].)

Second, Colgate

argues that the opinions of Plaintiff’s experts are inadmissible and insufficient to create a triable issue of material fact. Colgate argues Dr. Longo and Dr. Compton’s opinions are inadmissible and lack foundation because neither tested any products Plaintiff actually used. (Id. at p.9.) As for Dr. Krekeler, Colgate argues his opinion is inadmissible and lacks foundation because he did not perform the testing which he relies on in the declaration. (Reply at p. 10.)

The relevant

standard to determine whether Plaintiff presented sufficient evidence to create

a triable issue of material fact in a talc-based claim for asbestos exposure is set out in Strobel. In Strobel the Court held:

"long term use of a talcum powder product alleged to contain asbestos by a mesothelioma sufferer who was not exposed to any other known source of asbestos above background asbestos levels that are ever-present in the environment, together with expert testimony reporting positive test results for the presence of asbestos in ore from the sources used to manufacture the product." (Strobel, supra, 70 Cal.App.5th 796, 815.) "In the absence of evidence explaining how asbestos in the source ore would have been eliminated in the process of mining and then milling talc, that is enough to support more than a mere possibility that the accused product... was a substantial factor in causing [plaintiff] to develop mesothelioma." (Ibid.) From this, the Strobel court appeared to consider 1) how long term the use of the talcum powder product was 2) whether there was evidence that the mines from which talc used in the manufacture of the product were contaminated and 3) whether there is evidence that asbestos in the source ore would have been eliminated in processing the powder.

However, the Strobel court

focused on the inferences reasonably deducible from evidence that talc ore contained asbestos, and whether such inferences could support a finding that the final talc products contained asbestos. That is because the Strobels neglected to designate as an expert the testing expert who reported finding asbestos within the Johnson Baby Powder the Strobels alleged injured Mr. Strobel. (See Strobel, supra, 70 Cal. App.5th at pp. 808-809 ["The testing results in the record confirming the presence of asbestos in JBP marketed by J&J during the six-decade-plus exposure period at issue—presented with laboratory bench data specifying the number of asbestos structures counted—came from asbestos testing expert Dr. William Longo. Dr. Longo has presented these test results through testimony and expert reports in other asbestos litigation against J&J, but he was not designated as an expert in this case."].) In contrast, here, there does not appear to be any dispute that Dr. Longo and Dr. Compton were properly designated as experts in this case. As such, there is no impediment to Plaintiff advancing a much more straightforward argument; the evidence that the Mennen products Plaintiff was exposed to contained asbestos is that Plaintiff's experts tested other bottles of Mennen Shave Talc and Mennen Baby Magic -- made from the same talc source as the shave talc from the relevant time period -- and found asbestos. (See Bader, supra, (2022) 86 Cal.App.5th at p.1100 [affirming verdict against Colgate where: "Dr. Longo explained that his laboratory tested 57

container samples and 15 railroad car samples of JBP that were obtained from J&J's historical museum. He found asbestos in 68 percent of these museum samples. He also tested two sets of Cashmere Bouquet samples—one set of 38 provided by various plaintiffs' attorneys, and one set of 20 provided by Colgate's hired defense laboratory. He found asbestos in 30 of 38 of the first set, and in 20 of 20 of the second set. He characterized the amounts of asbestos found in cosmetic talc as trace amounts."].)

The undisputed

evidence is that Plaintiff used Mennen body powders regularly from 1968 to 2000 (AUMF Nos. 29, 22.) Additionally, Plaintiff used baby powder, including Mennen's Baby Magic, on his children between 1973 and 1981. (AUMF Nos. 26-37.) There is admissible evidence that testing revealed "regulated asbestos in 21 of 21 containers of Mennen talc powder products, or 100% of the Mennen talc products tested" of which "16 are Mennen Baby Magic powder products that cover a span of decades, spanning approximately 1965 through the 1990s." (Longo Decl. ¶¶ 51, 49.) Additionally, "three of the 21 total containers are Mennen Shave Talc, with two containers from the 1980s to early 1990s vintage and one container from the 1950s." (Id., at p.49.) Dr. Longo opined that the talcum powder products Plaintiff used contained asbestos in part due to the fact that "all Mennen talcum powders including Baby Magic, Mennen Shave Talc, and Mennen Bath Talc, were made with the same talc." (Id.) The evidence that other Mennen talcum powder products of the same or similar vintage of those used by Plaintiff contained asbestos creates at least a reasonable inference that Plaintiff was likewise exposed to Mennen talcum powder products that contained asbestos.

Colgate relies

heavily on *Berg v. Colgate-Palmolive Co.* (2019) 42 Cal.App.5th 630, in which it affirmed the trial court's grant of summary judgment where the expert declaration of the plaintiffs' geologist Mr. Fitzgerald failed to "support a conclusion that all or most of the Mennen Shave Talc containers sold from 1959 to 1962 contained asbestos." (Berg, supra, 42 Cal.App.5th at p. 636.) However, the reason this was significant within the Berg case is not because plaintiffs were required to present evidence that "all or most" of the defendant's products contained asbestos, but because "The testing of the talc on which Fitzgerald relies, both his own and others', occurred decades after the period of Berg's use. The only basis on which to conclude that the samples tested were of the correct vintage was Berg's testimony that the containers Fitzgerald tested looked like the ones he used, as no evidence was presented on the time span that these containers

were actually marketed.” (Ibid.)

The Berg Court

found that Mr. Fitzgerald's testimony failed to establish “any containers of Mennen Shave Talc sold between 1959 and 1961 or 1962 contained asbestos, much less that it is more likely than not that the containers Berg used contained asbestos.” (Id. at pp. 636-637.) In sum, the reason the Berg court noted that the plaintiffs had failed to present evidence that “all or most” of the product at issue in that case contained asbestos was because this evidence could have created a reasonable inference that Mr. Berg was exposed to asbestos in the absence of testing of the product he used or a product of a similar vintage. Here, in contrast, there is evidence of direct product testing of Mennen talcum powder products which shared the same talc source as Mennen Shave Talc and Baby Magic products, manufactured during the period Plaintiff used such products. As such, Plaintiff here need not make a showing that “all or most” of the products at issue contained asbestos, they need only show that there is sufficient evidence from which a reasonable finder of fact could infer it is more likely than not that Plaintiff was exposed to asbestos from a product Colgate was responsible for.

Likewise, Colgate's

insistence that Plaintiff's expert testimony is inadmissible or insufficient to create a triable issue of material fact as to threshold exposure because those experts did not test any particular product Plaintiff used is unsupported by California law. In *Lyons v. Colgate-Palmolive Co.* (2017) 16 Cal.App.5th 463, the Court of Appeal held: “The absence of the packaging and testing of the very container that plaintiff used is hardly sufficient reason to reject the testimony identifying the product that she used, combined with the expert testimony that all of that product contained ‘significant concentrations of airborne asbestos.’ ” (Lyons, supra, 16 Cal.App.5th at p. 463.) This holding indicates at the very least that plaintiffs are not required to present evidence that any particular container of a defendant's product contained asbestos to create a triable issue of material fact as to their exposure to an asbestos-contaminated product.

Finally, Colgate

objects and argues that Dr. Longo and Dr. Compton's testing methodologies are “outdated and unreliable.” Colgate's challenge to the methodological soundness of Plaintiff's experts is not thoroughly explained in its reply, evidentiary objections, or the declaration of Dr. Sanchez. In the absence of specific

objections regarding the soundness of Plaintiff's experts' methodology, the court cannot determine whether the methodology is less or more sound. The case law indicates that whatever the merits of this dispute, it is appropriate for resolution by the finder of fact at trial, not on a motion for summary judgment. (Strobel, supra, 70 Cal.App.5th at p. 811 ["On summary judgment, the parties offered the court two starkly different expert perspectives: There was, on the one hand, the view presented by Dr. Compton and Mr. Fitzgerald that J&J obtained talc ore from sources contaminated with asbestos during the exposure period, a premise from which these experts draw the inference that asbestos was present in JBP when Doug Strobel used it. On the other hand, there was the view presented by Dr. Sanchez that J&J sorted and screened its ore in the mining process to ensure only the most pristine talc was used for cosmetic products, and that suppliers were subject to strict testing requirements—established under an FDA-approved testing protocol—to confirm that source ore used to make JBP was asbestos-free [¶]. Which of these competing views to accept must be decided at trial."])

In sum, the court finds that the evidence of direct testing of Mennen talcum powder products showing the presence of asbestos in products of the same vintage used by Plaintiff is sufficient to create a triable issue of material fact as to whether "it is more likely than not that the talc product was contaminated with asbestos during the time the plaintiff used it." (Gibbons, supra, 44 Cal.App.5th at p. 489.) Therefore, Colgate's motion for summary judgment is denied.

B.

Punitive Damages

When

a motion for summary adjudication targets a request for punitive damages, a higher standard of proof is at play. "Although the clear and convincing evidentiary standard is a stringent one, 'it does not impose on a plaintiff the obligation to "prove" a case for punitive damages at summary judgment [or summary adjudication.]' [Citations.] Even so, 'where the plaintiff's ultimate burden of proof will be by clear and convincing evidence, the higher standard of proof must be taken into account in ruling on a motion for summary judgment or summary adjudication, since if a plaintiff is to prevail on a claim for punitive damages, it will be necessary that the evidence presented meet the higher evidentiary standard.' [Citation.]" (Butte Fire Cases (2018) 24

Cal.App.5th 1150, 1158-1159.) For a corporate defendant, the oppression, fraud or malice “must be on the part of an officer, director, or managing agent of the corporation.” (Civ. Code, § 3294, subd. (b).) That requirement can be satisfied “ ‘if the evidence permits a clear and convincing inference that within the corporate hierarchy authorized persons acted despicably in “willful and conscious disregard of the rights or safety of others.” ’ [Citation.]” (Morgan v. J-M Manufacturing Company, Inc. (2021) 60 Cal.App.5th 1078, 1090.) A plaintiff also “can satisfy the ‘managing agent’ requirement ‘through evidence showing the information in the possession of the corporation and the structure of management decision making that permits an inference that the information in fact moved upward to a point where corporate policy was formulated.’ [Citation.]” (Id. at p. 1091.)

“ ‘[I]ntentionally marketing a defective product knowing that it might cause injury and death is ‘highly reprehensible.’ [Citation.]” (Bankhead v. ArvinMeritor, Inc. (2012) 205 Cal.App.4th 68, 85.) Punitive damages may be available when a defendant knows the dangers of asbestos, took action to protect its own employees from the hazard, knew that its products were likely to pose a danger to users, and did not warn them. (Pfeifer v. John Crane, Inc. (2013) 220 Cal.App.4th 1270, 1300.) Such evidence “was sufficient to show malice, that is, despicable conduct coupled with conscious disregard for the safety of others.” (Id. at pp. 1300-1301.)

Colgate moves for summary adjudication of Plaintiff’s claim for punitive damages, arguing: “Plaintiff has no evidence with which to create a genuine issue of material fact to establish such oppression, fraud, or malice committed by anyone at Mennen, much less by a Mennen officer, director, or managing agent. Plaintiff’s response to Mennen’s Special Interrogatory No. 7 (an “all facts” interrogatory relative to punitive damages) contains nothing more than boilerplate allegations that Mennen knew, prior to or during the time when Plaintiff was using or exposed to Mennen body powder or Baby Magic, that asbestos was harmful, yet failed to warn of the dangers and continued to sell the product...Plaintiff’s Response fails to provide any evidence that an “officer, director, or managing agent” of Mennen knew that any Mennen body powder or Mennen Baby Magic sold to consumers was contaminated with asbestos or acted in any way with malice, fraud, or oppression.” (Motion at pp. 21-22.)

In opposition, Plaintiff argues that

Colgate failed to meet its burden on summary judgment because it failed to address the specific facts stated in his discovery responses. Plaintiff also argues that triable issues of material fact remain as to the punitive damages claim because Plaintiff's evidence establishes that Mennen continued to sell its products without warnings despite testing finding asbestos in its talcum powders. (Opp. at pp. 17-20.)

In reply, Colgate

reiterates that Plaintiff lacks any admissible evidence to support a claim for punitive damages. (Reply at pp. 12-14.)

1. Defendant's

Burden: Factually Devoid

Colgate meets its

burden of showing that Plaintiff lacks and cannot reasonably obtain evidence to support his demand for punitive damages. When asked to state all evidence supporting his contention that Colgate is liable for punitive damages, Plaintiff responded:

"In addition,

based on peer-reviewed published studies, reports, research and testing data, Defendant Colgate-Palmolive Company knew, or should have known, during the period that Plaintiff used Mennen body powder and Baby Magic baby powder, that the product featured asbestos contaminated talc, and that asbestos fibers were hazardous and could cause injury and death. Despite this knowledge, Plaintiff alleges that during the time that he used Mennen body powder and Baby Magic baby powder, there were never any warnings, written instructions or recommendations concerning the hazards of asbestos on the packaging of the products. As a result, Plaintiff was unaware of his need for any type of safety devices to specifically reduce his possible exposure to, or inhalation of, asbestos while using Mennen body powder and Baby Magic baby powder. As a direct and proximate result of his exposure to asbestos through his use of Mennen body powder and Baby Magic baby powder, Plaintiff was diagnosed with malignant mesothelioma on or about May 16, 2025.

Plaintiff further

contends Defendant Colgate-Palmolive Company knew, or should have known, prior to or during the time that Plaintiff used Mennen body powder and Baby Magic

baby powder, that asbestos fibers were hazardous and could cause injury and death. The source of this information is found in the medical and scientific literature available to Defendant Colgate Palmolive Company as well as in Defendant Colgate-Palmolive Company's corporate documents, which are already in Defendant Colgate-Palmolive Company's possession and have not been provided to Plaintiff in this litigation. In addition, despite the knowledge demonstrated in its corporate documents and/or by its employees' testimony, Defendant Colgate-Palmolive Company failed in all respects to warn Plaintiff or other consumers or users of the significant hazards inherent with such products.

Defendant

Colgate-Palmolive Company's knowledge and failure to warn prior to and during the times of Plaintiff's exposure is direct evidence of its malice, fraud and/or conscious disregard for the safety of others. In researching, manufacturing, fabricating, designing, modifying, testing, or failing to test, warning or failing to warn, labeling, assembling, distributing, leasing, buying, offering for sale, supplying, selling, inspecting, servicing, installing, contracting for installation, repairing, marketing, warranting, re-branding, manufacturing for others, packaging and advertising asbestos-containing products, Defendant Colgate-Palmolive Company did so with conscious disregard for the safety of 'exposed persons' (defined herein as users, consumers, workers, bystanders, members of the user's household, and others, including Plaintiff) who came in contact with its asbestos-containing Mennen body powder and Baby Magic baby powder.

On or before 1930,

and thereafter, Defendant Colgate-Palmolive Company was aware or should have been aware that members of the general public and other "exposed persons," such as Plaintiff, who would come in contact with its asbestos-containing products had no knowledge or information indicating that asbestos or asbestos-containing products could cause injury. Defendant Colgate-Palmolive Company knew that members of the general public and other 'exposed persons' who came in contact with its asbestos-containing products would assume, and in fact did assume, that exposure to its asbestos-containing products was safe when in fact said exposure was extremely hazardous to health and human life.

With knowledge of

the extreme hazards of exposure to asbestos-containing products, Defendant Colgate-Palmolive Company opted to assemble, distribute, lease, buy, offer for sale, supply, sell, inspect, service, install, contract for installation,

repair, market, warrant, re-brand, manufacture for others, package, and advertise Mennen body powder and Baby Magic baby powder without attempting to protect 'exposed persons' such as Plaintiff from, or warn 'exposed persons' of, the high risk of injury or death resulting from exposure to its asbestos-containing products. Rather than attempting to protect 'exposed persons' from, or warn 'exposed persons' of, the high risk of injury or death resulting from exposure to its asbestos-containing products, Defendant Colgate-Palmolive Company intentionally failed to reveal its knowledge of said risk, and consciously and actively concealed and suppressed said knowledge from 'exposed persons' and members of the general public, thus impliedly representing to 'exposed persons' and members of the general public that asbestos and asbestos-containing products were safe for all reasonably foreseeable uses. Defendant Colgate-Palmolive Company engaged in this conduct and made these implied representations with the knowledge of the falsity of said implied representations."

(Strunk Decl.,

Exh. A2 at pp.8-12.) Plaintiff also identified testimony of Colgate's corporate representatives, Colgate's discovery responses in other cases, the declarations of Dr. Longo and Dr. Compton, the contents of Colgate's own records, and other documents purportedly showing Colgate knew about the presence of asbestos in its talcum powder products. (Id.)

Plaintiff's discovery responses fail

to state the factual basis for his contention that Colgate knew that its talcum powder products were contaminated with asbestos and continued to sell them without warnings. It is reasonable to infer from these responses that Plaintiff lacks and cannot reasonably obtain evidence that Colgate knew of the hazards of its asbestos-contaminated products and continued selling them without warnings. Colgate meets its initial burden on summary adjudication.

2.

Plaintiff's Burden

Plaintiff argues

in opposition that his evidence creates a triable issue over whether Colgate's conduct supports a demand for punitive damages. (Opp. at pp.19-20 ["there is ample evidence Colgate knew about the hazards of asbestos from the mid 1930s, and the existence of asbestos in talc from the 1960s (AUF No. 117-129), yet did nothing to protect the safety of its consumers by warning them of the health

hazards of asbestos in its Cashmere Bouquet body powder (AUF Nos. 130-144). In fact, Colgate went to extraordinary lengths, including intentionally misrepresented and concealed material facts from the public and from the government, to hide the fact that Cashmere Bouquet contained asbestos. (AUF Nos. 151- 171).

These actions, despite actual knowledge of the dangers, is direct evidence of its malice, fraud and/or conscious disregard for the safety of others, and a reasonable jury could find this evidence to be clear and convincing proof of malice, fraud or oppression.”].)

Plaintiff provides

Colgate’s responses to standard interrogatories to show that Mennen was a member of the Cosmetics, Toiletries and Fragrances Association (CTFA) during the 1970s. (AUMF No. 117; Kim Decl., Exh. 4 at p.32.) Plaintiff then relies on transcripts of depositions taken of Daniella Urbach and Paul Vincenti to show that Mennen participated in CTFA testing which determined that the testing methods available in 1973 were insufficient to detect asbestos in samples that were deliberately spiked with asbestos. (AUMF Nos. 120-124.) Plaintiff also relies on an unauthenticated letter from a Mennen representative representing that Mennen talc products were asbestos free despite knowing its testing methods could not reliably detect asbestos in talc. (AUMF No. 125; Kim Decl., Exh. 17.) Plaintiff relies on a copy of a Colgate patent for a talcum powder alternative made from ground rice hulls and the deposition of Mr. Vincenti to show that Colgate knew other companies were developing talc alternatives due to concerns over asbestos contamination in talc. (AUMF Nos. 147-149.)

Plaintiff’s

evidence is sufficient to show that Colgate knew of the health hazards posed by its talcum powder products and continued to sell them without warnings.

Plaintiff largely relies on transcripts of depositions taken in unrelated matters. The court sustained Colgate’s objections to this testimony. The only remaining evidence Plaintiff presents to show that Colgate knew of potential asbestos contamination in its talcum powder products is a 1983 patent for a rice-hull-based talc alternative. (Kim Decl., Exh. 21.) The patent states that “ground rice hulls is an asbestos-free natural product and considerably less costly than talc.” (Id. at p.2.) The patent implies that Colgate was looking into talc alternatives due to concerns over asbestos. The patent states the rice hulls are a good alternative to talc because they are asbestos free, which supports an inference that Colgate knew that talc could be contaminated with asbestos and that an alternative was necessary to replace talc in its talcum

powder products.

At minimum, the patent raises a triable issue of material fact over whether Colgate knew that talc could be contaminated with asbestos and continued to sell its products without warnings. Plaintiff meets his burden to provide affirmative evidence supporting his demand for punitive damages.

Accordingly, the motion for summary adjudication is denied.

V.

Conclusion

Colgate meets its burden to show that its products were asbestos-free during the relevant time period through the expert declaration of Dr. Sanchez. Plaintiff presents sufficient affirmative evidence to create a triable issue of material fact as to asbestos contamination within Mennen talcum powder products during Plaintiff's exposure period through the expert testimony of Dr. Longo, and Dr. Compton. Therefore, Colgate's motion for summary judgment is denied.

As to punitive damages, Colgate meets its burden to show that Plaintiff's factually devoid discovery responses support an inference that Plaintiff lacks and cannot reasonably obtain evidence to support his demand for punitive damages. Plaintiff's evidence presented in opposition to the motion is sufficient to create a triable issue of material fact over whether Colgate knew of the hazards posed by its talcum powder products and continued selling them without warnings. Therefore, Colgate's motion for summary adjudication of the demand for punitive damages is denied.

Plaintiff to give notice.

. . . .

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

..

DEPARTMENT 14¿

¿

GIOVANNI CALABRESE,

Plaintiff,¿

v.

ARKEMA, INC., et al.

Defendants.¿¿

Case No. 25STCV35065

¿¿¿¿¿

Hearing Date: August 13, 2026

Time:

9:00 a.m.

¿ [TENTATIVE] ORDER

RE:¿

NOVARTIS CORPORATION'S MOTION FOR SUMMARY
JUDGMENT AND SUMMARY ADJUDICATION.

I.

Background

On December 2, 2025, Plaintiff Giovanni Calabrese filed his
complaint for personal injury alleging he developed mesothelioma from direct
exposure to asbestos-contaminated talc products he and his wife used throughout

his life beginning in 1968 in California, Arizona, and Montana.

On June 17, 2026, Defendants Novartis Corporation (“Novartis”) and Victoria’s Secret Stores, LLC (“Victoria’s Secret”) moved for summary judgment, arguing that Plaintiff lacks and cannot reasonably obtain evidence to support his claims that Mr. Calabrese was exposed to an asbestos-contaminated product for which they were responsible.

On July 24, 2026, Plaintiff filed an omnibus motion to the motions for summary judgment, arguing that the motions should be denied because Defendants failed to respond to discovery and produce its person most qualified (“PMQ”) for deposition.

On August 3, 2026, Novartis and Victoria’s Secret replied, arguing the opposition failed to identify evidence creating a triable issue of material fact and failed to demonstrate that relief under Code of Civil Procedure section 437c, subdivision (h) was appropriate.

Novartis meets its burden to show that Plaintiff lacks and cannot reasonably obtain evidence that he was exposed to an asbestos-contaminated product for which it was responsible. Plaintiff failed to present affirmative evidence to support their claim and failed to meet his burden on summary judgment. Novartis’s motion for summary judgment is granted.

II.

Discussion

A.

Legal Standard

A defendant seeking summary judgment must “conclusively negate[] a necessary element of the plaintiff’s case, or . . . demonstrate[] that under no hypothesis is there a material issue of fact that requires the process of trial.” (Guz v. Bechtel Nat. Inc. (2000) 24 Cal.4th 317, 334.) To show that a plaintiff cannot establish an element of a cause of action, a defendant must make the initial showing “that the plaintiff does not possess, and cannot reasonably obtain, needed evidence.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 854.) “The defendant may, but need not, present evidence that conclusively negates an element of the plaintiff’s cause of

action. The defendant may also present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence – as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing.” (Id. at p. 855.) “ ‘If plaintiffs respond to comprehensive interrogatories seeking all known facts with boilerplate answers that restate their allegations, or simply provide laundry lists of people and/or documents, the burden of production will almost certainly be shifted to them once defendants move for summary judgment and properly present plaintiff’s factually devoid discovery responses.’ ” (Weber v. John Crane, Inc. (2006) 143 Cal.App.4th 1433, 1440.)

B.

Causation

In asbestos litigation, a plaintiff is required to show causation. A plaintiff must show “some threshold exposure to the defendant’s defective asbestos-containing products” and must further establish in “reasonable medical probability” that a particular exposure or series of exposures was a “legal cause” of his injury, i.e., a substantial factor in bringing about the injury. (Rutherford v. Owens-Illinois, Inc. (1997) 16 Cal.4th 953, 982.) “[T]he proper analysis is to ask whether the plaintiff has proven exposure to a defendant’s product, of whatever duration, so that exposure is a possible factor in causing the disease and then to evaluate whether the exposure was a substantial factor.” (Lineaweaver v. Plant Insulation Co. (1995) 31 Cal.App.4th 1409, 1416.)

Where asbestos was not an intended ingredient in a talc product, plaintiffs bear the additional burden of showing that it is “more likely than not that the talc product was contaminated with asbestos during the time the plaintiff used it.” (LAOSD Asbestos Cases (2020) 44 Cal.App.5th 475, 489 [hereinafter “Gibbons”].) Evidence sufficient to support this finding includes “long term use of a talcum powder product alleged to contain asbestos by a mesothelioma sufferer who was not exposed to any other known source of asbestos above background asbestos levels that are ever-present in the environment, together with expert testimony reporting positive test results for the presence of asbestos in ore from the sources used to manufacture the product.” (Strobel v. Johnson & Johnson (2021) 70 Cal.App.5th 796, 815.) “In the absence of evidence explaining how asbestos in the source ore would have been eliminated in the process of mining and then milling talc, that is enough to support more than a mere possibility

that the accused product... was a substantial factor in causing [plaintiff] to develop mesothelioma.” (Ibid.)

1. Defendant's

Burden: Factually Devoid

Novartis

moves for summary judgment on the grounds that Plaintiff's discovery responses are devoid of facts supporting his claim that he was exposed to an asbestos-contaminated product for which it was responsible. (Motion at p.5 [“Through written discovery, Novartis asked Mr. Calabrese to identify the facts, witnesses, and documents supporting his contention that Desenex contained asbestos during the period Novartis owned and distributed the product, that Novartis knew Desenex posed a hazard to consumers, that exposure to a Novartis product caused his disease, and that Novartis engaged in conduct sufficient to support punitive damages...Mr. Calabrese's responses identified no witness, no document, or any specific evidence establishing that Desenex contained asbestos during Novartis's ownership period, that Novartis knew Desenex contained asbestos, or that any conduct by Novartis caused his illness.”].)

Novartis relies on

Plaintiff's responses to written discovery to support its motion. When asked to “state all facts that support YOUR claims against [Defendants'] as alleged in [his] Complaint,” Plaintiff responded as follows:

“Plaintiff applied

Desenex foot powder typically in the mornings before putting on his shoes, after showers and after exercise or other physical exertion. Plaintiff applied Desenex foot powder by shaking the powder onto his feet and rubbing it into his feet and between his toes with his hands, by shaking the powder into his socks before putting them on, and by shaking the powder into his shoes before putting them on. Each application of Desenex foot powder onto Plaintiff's feet, sock and shoes created visible dust that Plaintiff inhaled. Plaintiff's use of Desenex foot powder caused Plaintiff to be exposed to asbestos fibers, particles and/or dust. Based on peer-reviewed published studies, reports, research and testing data, Defendant Novartis Corporation knew, or should have known, during the period that Plaintiff used Desenex foot powder, that they featured asbestos contaminated talc, and that asbestos fibers were hazardous and could cause injury and death. Despite this knowledge, during the time that Plaintiff used Desenex foot powder, there were never any warnings, written

instructions or recommendations concerning the hazards of asbestos on the packaging of the products. As a result, Plaintiff was unaware of his need for any type of safety devices to reduce his possible exposure to, or inhalation of, asbestos while using Desenex foot powder. As a direct and proximate result of his exposure to asbestos through his personal use of Desenex foot powder, Plaintiff developed and was diagnosed with malignant mesothelioma on or about May 16, 2025.

Plaintiff further contents Defendant Novartis Corporation knew, or should have known, prior to or during the time that Plaintiff used the talcum powder products manufactured and sold by Defendant Novartis Corporation, that asbestos fibers were hazardous and could cause injury and death. The source of this information is found in the medical and scientific literature available to Defendant Novartis Corporation as well as in Defendant Novartis Corporation's corporate documents, which are already in Defendant Novartis Corporation's possession and have not been provided to Plaintiff in this litigation. In addition, despite the knowledge demonstrated in its corporate documents and/or by its employees' testimony, Defendant Novartis Corporation failed in all respects to warn Plaintiff or other consumers or users of the significant hazards inherent with such products."

(Thacker Decl.,
Exh. C at p.4.)

Novartis also presented Plaintiff's deposition testimony to show that Plaintiff has no information about where Desenex sourced the minerals used in the Desenex powders he used or where the powders were manufactured. (Thacker Decl., Exh. D at 430:2-17 ["Q: Okay. Do you have any personal knowledge or information as to what ingredients were contained in the Desenex product? A: No. Q: Do you have any personal knowledge or information as to where the Desenex powder was manufactured? A: No.].) Plaintiff also testified that he was not familiar with the Novartis Corporation. (Id. at 434:24-435:1 ["Q: Are you familiar with the name Novartis Corporation? A: No."].) Plaintiff's daughter, Annamaria Loven, stipulated that she would not offer testimony regarding any products that she did not identify at her deposition, including Novartis. (Id., Exh. E at 66:13-4.)

Novartis meets its initial burden to

prove that Plaintiff lacks and cannot reasonably obtain evidence that he was exposed to an asbestos-contaminated product for which it was responsible. Because Plaintiff alleges that the talcum powders at issue were made with talc contaminated with asbestos, Plaintiff's discovery responses were required to set forth facts from which the court can reasonably infer that it was "more likely than not that the talc product was contaminated with asbestos during the time" that he used it. (Strobel, *supra*, 70 Cal.App.5th at p.815.)

Here, Plaintiff's responses to an interrogatory seeking all facts that support his claims against Novartis failed to state the factual basis for his contention that the talcum powders he used were contaminated with asbestos. (Thacker Decl., Exh. C at p.4.) Plaintiff testified that he had no information about the source of the talc used in the Desenex powders he used and where they were manufactured. (*Id.*, Exh. D at 430:2-17.) Plaintiff failed to identify any other witnesses with evidence to support his claims against Novartis. Plaintiff's responses to written discovery and at his deposition are devoid of facts supporting his contention that the Desenex powders he used were contaminated with asbestos. Plaintiff's factually devoid responses support an inference that he lacks and cannot reasonably obtain evidence to support his claims against Novartis.

Novartis meets its initial burden to show that Plaintiffs lack and cannot reasonably obtain evidence to support their claims against it. The burden shifts to Plaintiffs.

2.

Plaintiff's Burden

Plaintiff does not substantively oppose Novartis's motion. Plaintiff filed an omnibus opposition to Novartis's and Victoria's Secret's motions for summary judgment, arguing that the motions should be denied under Code of Civil Procedure section 437c, subdivision (h) because Defendants ignored Plaintiff's discovery requests and refused to schedule PMQ depositions.

"If

it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court

shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just. The application to continue the motion to obtain necessary discovery may also be made by ex parte motion at any time on or before the date the opposition response to the motion is due.” (Code Civ. Proc. Section 437c, subd. (h).) A party seeking to deny or continue a hearing on a motion for summary judgment to complete further discovery must show that the facts to be obtained are essential to opposing the motion, that there is reason to believe these facts exist, and that additional time is needed to obtain these facts. (Braganza v. Albertson's LLC (2021) 67 Cal.App.5th 144, 156 .) A court properly denies a request to deny or continue a motion where a plaintiff fails to perform meaningful discovery or was not diligent in performing discovery. (Rodriguez v. Oto (2013) 212 Cal.App.4th 1020, 1038 [“A good faith showing that further discovery is needed to oppose summary judgment requires some justification as to why this discovery was not completed sooner.”].)

Here, Plaintiff's counsel declares that he propounded requests for written discovery on Defendants on April 20, 2025 with responses due on May 22, 2026. (Kim Decl. at ¶¶3-9.) To date, neither Victoria's Secret nor Novartis served responses to written discovery. (Id.) Also on May 22, 2026, Plaintiff served a notice of deposition on Victoria's Secret. (Id. at ¶10.) Plaintiff's counsel also offered to forgo Novartis's PMQ deposition in exchange for a copy of Defendants' prior PMQ deposition transcripts and a waiver of general objections to use the transcripts at trial. (Id. at ¶13.) Defendants did not respond to the notice or Plaintiff's counsel's follow-up communications in June 2026. (Id. at ¶¶14-18.) On June 8, 2026, Victoria's Secret served objections to the deposition notice and advised it would not produce a witness for the scheduled deposition. (Id. at ¶19.) On July 1, 2026, Novartis left Plaintiff's counsel a voicemail stating it would not produce a witness on the deposition date. (Id. at ¶33.) Although Plaintiff's counsel sent meet and confer letters to Defendants' counsel on June 18 and June 26, 2027, Defendants' counsel failed to respond. (Id. at ¶27-28, 31-34.) Although counsel spoke telephonically on July 2, 2026, Defendants failed to produce the majority of the responses to written discovery and failed to offer dates for PMQ depositions. (Id. at ¶¶38-43.) Victoria's Secret produced one deposition transcript and accompanying documents on July 16, 2026. (Id. at ¶41.)

In reply,

Novartis's counsel fails to explain the failure to respond to Plaintiff's requests for written discovery or his failure to produce a PMQ for deposition but confirms that he produced a deposition transcript of a previous deposition of Victoria's Secret's PMQ. (Jackson Decl. at ¶14.)

Plaintiff requests

that the court deny Defendants' motions for summary judgment because their failure to participate in discovery prevented Plaintiff from timely obtaining information necessary to oppose the motion. However, Plaintiff failed to show that he was diligent in seeking this discovery. Although Plaintiff sent meet and confer letters to Defendants' counsel repeatedly between April and June 2026, Plaintiff should have known that these letters were ineffective by June 2026 when Defendants failed to respond to these communications for two months. The proper remedy for a party's failure to respond to discovery is a motion to compel the discovery, not denial of a motion for summary judgment. At minimum, Plaintiff could have sought court intervention sooner by scheduling an informal discovery conference with the court. Plaintiff failed to move to compel the discovery or schedule an independent discovery conference with the court. The court finds that Plaintiff was not diligent in completing discovery and denies the Plaintiff's request to deny Defendants' motions for summary judgment.

Plaintiff fails to

substantively oppose Novartis's motion for summary judgment and therefore fails to meet his burden to present affirmative evidence supporting his claims against it. The motion for summary judgment is granted.

III.

Conclusion

Novartis meets its burden to show that Plaintiffs' lack and cannot reasonably obtain evidence that Mr. Calabrese was exposed to an asbestos-contaminated product for which it was responsible. Plaintiff failed to present affirmative evidence to support their claim and failed to meet their burden on summary judgment. Novartis's motion for summary judgment is granted.

Novartis to give notice.

. . . .

SUPERIOR COURT OF THE STATE OF

CALIFORNIA, et al.

FOR THE COUNTY OF LOS ANGELES

..

DEPARTMENT 14, et al.

et al.

GIOVANNI CALABRESE,

Plaintiff, et al.

v.

ARKEMA, INC., et al.

Defendants. et al.

Case No. 25STCV35065

et al.

Hearing Date: August 13, 2026

Time:

9:00 a.m.

et al. [TENTATIVE] ORDER

RE: et al.

MOTIONS FOR SUMMARY JUDGMENT AND SUMMARY
ADJUDICATION FILED BY DEFENDANT VICTORIA'S SECRET STORES, LLC.

I.

Background

On December 2, 2025, Plaintiff Giovanni Calabrese filed his
complaint for personal injury alleging he developed mesothelioma from direct

exposure to asbestos-contaminated talc products he and his wife used throughout his life beginning in 1968 in California, Arizona, and Montana.

On June 17, 2026, Defendants Novartis Corporation (“Novartis”) and Victoria’s Secret Stores, LLC (“Victoria’s Secret”) (collectively “Defendants”) moved for summary judgment, arguing that Plaintiffs lack and cannot reasonably obtain evidence to support their claims that Mr. Calabrese was exposed to an asbestos-contaminated product for which they were responsible.

On July 24, 2026, Plaintiff opposed, arguing that the motion should be denied because Defendants failed to respond to discovery and produce its person most qualified (“PMQ”) for deposition.

On August 3, 2026, Novartis and Victoria’s Secret replied, arguing the opposition failed to identify evidence creating a triable issue of material fact and failed to demonstrate that relief under Code of Civil Procedure section 437c, subdivision (h) was appropriate.

Victoria’s Secret meets its burden to show that Plaintiff lacks and cannot reasonably obtain evidence that he was exposed to an asbestos-contaminated product for which it was responsible. Plaintiff failed to present affirmative evidence to support their claim and failed to meet his burden on summary judgment. Victoria’s Secret’s motion for summary judgment is granted.

II.

Discussion

A.

Legal Standard

A defendant seeking summary judgment must “conclusively negate[] a necessary element of the plaintiff’s case, or . . . demonstrate[] that under no hypothesis is there a material issue of fact that requires the process of trial.” (Guz v. Bechtel Nat. Inc. (2000) 24 Cal.4th 317, 334.) To show that a plaintiff cannot establish an element of a cause of action, a defendant must make the initial showing “that the plaintiff does not possess, and cannot reasonably obtain, needed evidence.” (Aguilar

v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 854.) "The defendant may, but need not, present evidence that conclusively negates an element of the plaintiff's cause of action. The defendant may also present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence – as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing." (Id. at p. 855.) " 'If plaintiffs respond to comprehensive interrogatories seeking all known facts with boilerplate answers that restate their allegations, or simply provide laundry lists of people and/or documents, the burden of production will almost certainly be shifted to them once defendants move for summary judgment and properly present plaintiff's factually devoid discovery responses.' " (Weber v. John Crane, Inc. (2006) 143 Cal.App.4th 1433, 1440.)

B.

Causation

In

asbestos litigation, a plaintiff is required to show causation. A plaintiff must show "some threshold exposure to the defendant's defective asbestos-containing products" and must further establish in "reasonable medical probability" that a particular exposure or series of exposures was a "legal cause" of his injury, i.e., a substantial factor in bringing about the injury. (Rutherford v. Owens-Illinois, Inc. (1997) 16 Cal.4th 953, 982.) "[T]he proper analysis is to ask whether the plaintiff has proven exposure to a defendant's product, of whatever duration, so that exposure is a possible factor in causing the disease and then to evaluate whether the exposure was a substantial factor." (Lineaweaver v. Plant Insulation Co. (1995) 31 Cal.App.4th 1409, 1416.)

Where asbestos was not an

intended ingredient in a talc product, plaintiffs bear the additional burden of showing that it is "more likely than not that the talc product was contaminated with asbestos during the time the plaintiff used it." (LAOSD Asbestos Cases (2020) 44 Cal.App.5th 475, 489 [hereinafter "Gibbons"].) Evidence sufficient to support this finding includes "long term use of a talcum powder product alleged to contain asbestos by a mesothelioma sufferer who was not exposed to any other known source of asbestos above background asbestos levels that are ever-present in the environment, together with expert testimony reporting positive test results for the presence of asbestos in ore from the sources used to manufacture the product." (Strobel v. Johnson & Johnson (2021) 70 Cal.App.5th 796, 815.) "In the absence of evidence explaining how

asbestos in the source ore would have been eliminated in the process of mining and then milling talc, that is enough to support more than a mere possibility that the accused product... was a substantial factor in causing [plaintiff] to develop mesothelioma." (Ibid.)

1. Defendant's

Burden: Factually Devoid

Defendants

move for summary judgment on the grounds that Plaintiff's discovery responses are devoid of facts supporting his claim that he was exposed to an asbestos-contaminated product for which they were responsible. (Motion at p. 7 ["Victoria's Secret has made the required showing here. Victoria's Secret asked Mr. Calabrese to identify the facts supporting his contention that Victoria's Secret should be liable to him as alleged in the Complaint...In response, Mr. Calabrese referred generally to unspecified "peer-reviewed published studies, reports, research and testing data" that allegedly support his contention that Victoria's Secret body powder 'featured asbestos-contaminated talc,' but he did not identify any study, report, research, or testing data reaching that conclusion...Nor did he identify any other fact, document, or evidence suggesting that Victoria's Secret body powder contained asbestos."].)

Victoria's Secret

relies on Plaintiff's responses to written discovery to support their motion. When asked to "state all facts that support YOUR claims against VICTORIA'S SECRET as alleged in [his] Complaint," Plaintiff responded as follows:

"Nancy Marlene

Calabrese's use of the Victoria's Secret body powder in Plaintiff's presence caused Plaintiff to be exposed to asbestos fibers, particles and/or dust. Based on peer reviewed published studies, reports, research and testing data, Defendant Victoria's Secret Stores, LLC knew, or should have known, during the period that Nancy Marlene Calabrese used Victoria's Secret body powder in Plaintiff's presence, that they featured asbestos contaminated talc, and that asbestos fibers were hazardous and could cause injury and death. Despite this knowledge, during the time that Nancy Marlene Calabrese used Victoria's Secret body powder in Plaintiff's presence, there were never any warnings, written instructions or recommendations concerning the hazards of asbestos on the packaging of the products. As a result, Plaintiff was unaware of his need for any type of safety devices to reduce his possible exposure to, or inhalation

of, asbestos while Nancy Marlene Calabrese used Victoria's Secret body powder. As a direct and proximate result of his exposure to asbestos through Nancy Marlene Calabrese's use of Victoria's Secret body powder, Plaintiff developed and was diagnosed with malignant mesothelioma on or about May 16, 2025."

(Thacker Decl.,
Exh. C at p.4.)

Victoria's secret also presented Plaintiff's deposition testimony to show that Plaintiff has no information about which Victoria's Secret body powder his wife used. (Thacker Decl., Exh. D at 448:1-9 ["Okay. And because you didn't read the ingredient list, you don't know anything about the ingredients in any Victoria's Secret body powder that Marli used, right, other than just seeing the – the name 'talc body powder'; right? A: Correct. Q: 'Perfumed body talc,' correct? A: Correct."].) Plaintiff also testified that he had no information about where the powders were manufactured. (Id. at 449:9-12.)

Victoria's Secret meets its initial burden to prove that Plaintiff lacks and cannot reasonably obtain evidence that he was exposed to an asbestos-contaminated product for which it was responsible. Because Plaintiff alleges that the talcum powders at issue were made with talc contaminated with asbestos, Plaintiff's discovery responses were required to set forth facts from which the court can reasonably infer that it was "more likely than not that the talc product was contaminated with asbestos during the time" that he was exposed to it. (Strobel, supra, 70 Cal.App.5th at p.815.)

Here, Plaintiff's responses to an interrogatory seeking all facts that support his claims against Victoria's Secret failed to state the factual basis for his contention that the talcum powders his wife used were contaminated with asbestos. (Thacker Decl., Exh. C at p.4.) Plaintiff testified that he had no information about which Victoria's Secret body powder his wife used and where it was manufactured. (Id., Exh. D at 448:1-9, 449:9-12.) Plaintiff failed to identify any other witnesses with evidence to support his claims against Victoria's Secret. Plaintiff's responses to written discovery and at his deposition are devoid of facts supporting his contention that the body powders his wife used were contaminated with asbestos. Plaintiff's factually devoid responses support an inference that he lacks and cannot reasonably obtain evidence to support his claims against Victoria's

Secret.

Victoria's Secret meets its initial

burden to show that Plaintiffs lack and cannot reasonably obtain evidence to support their claims against it. The burden shifts to Plaintiffs.

1.

Plaintiff's Burden

Plaintiff

does not substantively oppose Victoria's Secret's motion. Plaintiff filed an omnibus opposition to Novartis's and Victoria's Secret's motions for summary judgment, arguing that the motions should be denied under Code of Civil Procedure section 437c, subdivision (h) because Defendants ignored Plaintiff's discovery requests and refused to schedule PMQ depositions.

"If

it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just. The application to continue the motion to obtain necessary discovery may also be made by ex parte motion at any time on or before the date the opposition response to the motion is due." (Code Civ. Proc. Section 437c, subd. (h).) A party seeking to deny or continue a hearing on a motion for summary judgment to complete further discovery must show that the facts to be obtained are essential to opposing the motion, that there is reason to believe these facts exist, and that additional time is needed to obtain these facts. (Braganza v. Albertson's LLC (2021) 67 Cal.App.5th 144, 156 .) A court properly denies a request to deny or continue a motion where a plaintiff fails to perform meaningful discovery or was not diligent in performing discovery. (Rodriguez v. Oto (2013) 212 Cal.App.4th 1020, 1038 ["A good faith showing that further discovery is needed to oppose summary judgment requires some justification as to why this discovery was not completed sooner."].)

Here, Plaintiff's

counsel declares that he propounded requests for written discovery on Defendants on April 20, 2025 with responses due on May 22, 2026. (Kim Decl. at ¶¶3-9.) To date, neither Victoria's Secret nor Novartis served responses to

written discovery. (Id.) Also on May 22, 2026, Plaintiff served a notice of deposition on Victoria's Secret. (Id. at ¶10.) Plaintiff's counsel also offered to forgo Novartis's PMQ deposition in exchange for a copy of Defendants' prior PMQ deposition transcripts and a waiver of general objections to use the transcripts at trial. (Id. at ¶13.) Defendants did not respond to the notice or Plaintiff's counsel's follow-up communications in June 2026. (Id. at ¶¶14-18.) On June 8, 2026, Victoria's Secret served objections to the deposition notice and advised it would not produce a witness for the scheduled deposition. (Id. at ¶19.) On July 1, 2026, Novartis left Plaintiff's counsel a voicemail stating it would not produce a witness on the deposition date. (Id. at ¶33.) Although Plaintiff's counsel sent meet and confer letters to Defendants' counsel on June 18 and June 26, 2027, Defendants' counsel failed to respond. (Id. at ¶27-28, 31-34.) Although counsel spoke telephonically on July 2, 2026, Defendants failed to produce the majority of the responses to written discovery and failed to offer dates for PMQ depositions. (Id. at ¶¶38-43.) Victoria's Secret produced one deposition transcript and accompanying documents on July 16, 2026. (Id. at ¶41.)

In reply, Victoria's Secret's counsel fails to explain the failure to respond to Plaintiff's requests for written discovery or his failure to produce a PMQ for deposition but confirms that he produced a deposition transcript of a previous deposition of Victoria's Secret's PMQ. (Jackson Decl. at ¶4.)

Plaintiff requests

that the court deny Defendants' motions for summary judgment because their failure to participate in discovery prevented Plaintiff from timely obtaining information necessary to oppose the motion. However, Plaintiff failed to show that he was diligent in seeking this discovery. Although Plaintiff sent meet and confer letters to Defendants' counsel repeatedly between April and June 2026, Plaintiff should have known that these letters were ineffective by June 2026 when Defendants failed to respond to these communications for two months. The proper remedy for a party's failure to respond to discovery is a motion to compel the discovery, not denial of a motion for summary judgment. At minimum, Plaintiff could have sought court intervention sooner by scheduling an informal discovery conference with the court. Plaintiff failed to move to compel the discovery or schedule an independent discovery conference with the court. The court finds that Plaintiff was not diligent in completing discovery and denies the Plaintiff's request to deny Defendants' motions for summary judgment.

Plaintiff fails to substantively oppose Victoria's Secret's motion for summary judgment and therefore fails to meet his burden to present affirmative evidence supporting his claims against it. The motion for summary judgment is granted.

III.

Conclusion

Victoria's Secret meets its burden to show that Plaintiff lacks and cannot reasonably obtain evidence that he was exposed to an asbestos-contaminated product for which it was responsible. Plaintiff failed to present affirmative evidence to support their claim and failed to meet his burden on summary judgment. Victoria's Secret's motion for summary judgment is granted.

Victoria's Secret to give notice.

. . . .

SUPERIOR COURT OF THE STATE OF
CALIFORNIA,çç

FOR THE COUNTY OF LOS ANGELES

. .

DEPARTMENT 14,ç

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GIOVANNI CALABRESE,

Plaintiff,ç

v.

ARKEMA, INC., et al.

Defendants.çç

Case No. 25STCV35065

¿¿¿¿

Hearing Date: August 13, 2026

Time:

9:00 a.m.

¿ [TENTATIVE] ORDER

RE:¿

WALMART, INC.'S MOTION FOR SUMMARY JUDGMENT AND
SUMMARY ADJUDICATION.

I.

Background

On December 2, 2025, Plaintiff Giovanni Calabrese filed his complaint for personal injury alleging he developed mesothelioma from direct exposure to asbestos-contaminated talc products he and his wife used throughout his life beginning in 1968 in California, Arizona, and Montana.

On June 18, 2026, Defendant Walmart Inc. ("Walmart" or "Defendant") moved for summary judgment, arguing that Plaintiff lacks and cannot reasonably obtain evidence to support their claims that Mr. Calabrese was exposed to an asbestos-contaminated product for which it was responsible.

On July 24, 2026, Plaintiff opposed, arguing that Walmart failed to meet its initial burden and that his evidence is sufficient to raise a triable issue of material fact regarding his exposure to asbestos for which Walmart is responsible.

On July 31, 2026, Walmart replied, arguing that Plaintiff failed to offer proof that any talcum powder product he used from Walmart was contaminated with asbestos.

Walmart meets its burden to show that Plaintiff's discovery responses were devoid of facts demonstrating that he was exposed to an

asbestos-contaminated product for which it was responsible. Plaintiff fails to present affirmative evidence to support his claim and met his burden on summary judgment. Walmart's motion for summary judgment is granted. Walmart's motions for summary adjudication are moot.

II.

Evidentiary Objections

Defendant's Objections

Overruled

1. Exhibit

1 – Excerpts from the deposition testimony of Plaintiff Giovanni Calabrese, Volume I, taken in this matter on March 4, 2026. Walmart's objection fails to specify which portions of the deposition testimony are objectionable and why. Objections to evidence must set forth the specific ground for the objection. (Evid. Code, § 353, subd. (a).) The objection is overruled.

15, 16, 18, 20. Walmart objects to the entirety of Plaintiff's Exhibit 19, 20, and 23. The objections are overruled for the same reasons as objection number 1.

19. Exhibit

23 – Declaration of Galin Jones, ¶ 8. Walmart objects to paragraph 8 of Dr. Jones's declaration. However, there is no paragraph 8 to the declaration. The objection is overruled.

Sustained

2. Exhibit

5 – Excerpts from the deposition testimony of Coryn Kremers taken on January 24, 2023 in the matter Plant v. Avon Products, Inc., et al. Richland County Court of Common Pleas of the State of South Carolina, Case No. 2022-CP-40 1265. This testimony is hearsay. Plaintiff fails to identify a valid hearsay exception to support the admissibility of this prior testimony. Plaintiff fails to rebut the general rule against the admissibility of former deposition testimony. (Berroteran v. Superior Court (2022) 12 Cal.5th 867, 895 [“The party urging admission of deposition testimony bears the burden of rebutting the general rule by submitting appropriate information justifying the

admission of designated deposition testimony.”.) Plaintiff offers no evidence or argument to support the admissibility of this deposition and do not address whether this deposition was intended to serve as a trial preservation transcript, whether a subsequent agreement was made to use the deposition as trial testimony, or that any of the Berroteran factors bear in favor of the admissibility of the deposition. The objection is sustained.

3-5, 8, 9, 11-14. Walmart

objects to Plaintiff's Exhibits 6, 8, 9, 12, 13, 15, 16, 17, 18. These exhibits are transcripts of depositions taken in unrelated matters. The objections are sustained for the same reasons as objection number 2.

6. Exhibit

10 – Chart of Vi-Jon baby powder sales to Walmart (1989-2016) produced in matter Kendall v. Hy-Vee, Inc. et al, Iowa District Court, Polk County, Case No. LACL161695. This exhibit is unauthenticated. There is no evidence that the document is what Plaintiffs purport it to be.

7, 17. Walmart

objects to Plaintiff's Exhibits 11 and 21, which consist of documents produced in discovery in unrelated matters. The exhibits are unauthenticated. Walmart's objections are sustained for the same reasons as objection number 6.

10. Exhibit 14 –

Defendant Vi-Jon LLC's Answers to Plaintiff's Interrogatories served in Schmidt v. Gordon Thompson Food, Inc., et al., District Court of Minnesota, County of Ramsey, Second Judicial District, Case No. 62-CV 224900, in its entirety.

Walmart objects to Exhibit 14 on the grounds that Plaintiff cannot use admissions by other parties against Walmart. Binding California appellate authority indicates that courts should be cautious in permitting litigants to introduce a third party's interrogatories as evidence in lieu of depositions because of a lack of opportunity for the party against whom the interrogatory is admitted to propound cross interrogatories or otherwise challenge the veracity of the evidence through cross examination. (See Petersen v. City of Vallejo (1968) 259 Cal.App.2d 757, 776 [“The answers of one party, the State, elicited in response to interrogatories propounded to it by the plaintiff, cannot be used as evidence against a third party, the City.”]; Associates Discount Corp. v. Tobb Co. (1966) 241 Cal.App.2d 541, 551-552 [“It would be

unreasonable and absurd to permit questions and answers respectively propounded and received in an interrogatory proceeding between two parties to be used against a third party when the latter is not given the right to propound cross-interrogatories or to exercise the privilege conferred upon the party initiating the proceeding by section 2030 to require the adverse party to whom the interrogatories are directed to make a further response. Equally unreasonable and absurd would be a system for the preservation of the testimony of witnesses generally which permits such by an interrogatory procedure in lieu of depositions where the right to cross-interrogate or to examine orally is conferred upon all parties, but permits an alternate interrogatory procedure to be invoked by one of the parties when the witness is an adverse party under which the right to cross-interrogate or to examine orally is not extended to other parties.”] *Castaline v. City of Los Angeles* (1975) 47 Cal.App.3d 580, 588-589 [“It is something quite different, however, to use responses furnished by party B in answer to interrogatories propounded by party A against party C for evidentiary purposes. The basis for the holding in *Associates* that C, the third party—here the City—has no ‘right to propound cross-interrogatories or to exercise the privilege conferred upon the (third) party initiating the proceeding . . . to require the adverse party . . . to make a further response’ [Citation] is as valid as ever. Nothing in the 1971 amendment permitting the service of interrogatories on any party expanded the third party’s right to inject itself into a discovery process between two other parties.”].)

21. Exhibit

24- Declaration of Dr. Murray Finkelstein, ¶ 7. Paragraph 7 to Dr. Finkelstein’s declaration relates case-specific hearsay. (*People v. Sanchez* (2016) 63 Cal.4th 665 [“What an expert cannot do is relate as true case-specific facts asserted in hearsay statements, unless they are independently proven by competent evidence or are covered by a hearsay exception.”].) The objection is sustained to the extent that the declaration relates case-specific facts.

22-23.

Walmart’s objections to paragraphs 8-9 of Dr. Finkelstein’s declaration are sustained for the same reasons as objection number 21. However, Dr. Finkelstein’s opinion on the cause of Plaintiff’s mesothelioma is not a case-specific fact but his own opinion.

III.

Discussion

A.

Legal Standard

A defendant seeking

summary judgment must “conclusively negate[] a necessary element of the plaintiff’s case, or . . . demonstrate[] that under no hypothesis is there a material issue of fact that requires the process of trial.” (Guz v. Bechtel Nat. Inc. (2000) 24 Cal.4th 317, 334.) To show that a plaintiff cannot establish an element of a cause of action, a defendant must make the initial showing “that the plaintiff does not possess, and cannot reasonably obtain, needed evidence.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 854.) “The defendant may, but need not, present evidence that conclusively negates an element of the plaintiff’s cause of action. The defendant may also present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence – as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing.” (Id. at p. 855.) “ ‘If plaintiffs respond to comprehensive interrogatories seeking all known facts with boilerplate answers that restate their allegations, or simply provide laundry lists of people and/or documents, the burden of production will almost certainly be shifted to them once defendants move for summary judgment and properly present plaintiff’s factually devoid discovery responses.’ ” (Weber v. John Crane, Inc. (2006) 143 Cal.App.4th 1433, 1440.)

B.

Causation

In

asbestos litigation, a plaintiff is required to show causation. A plaintiff must show “some threshold exposure to the defendant’s defective asbestos-containing products” and must further establish in “reasonable medical probability” that a particular exposure or series of exposures was a “legal cause” of his injury, i.e., a substantial factor in bringing about the injury. (Rutherford v. Owens-Illinois, Inc. (1997) 16 Cal.4th 953, 982.) “[T]he proper analysis is to ask whether the plaintiff has proven exposure to a defendant’s product, of whatever duration, so that exposure is a possible factor in causing the disease and then to evaluate whether the exposure was a substantial factor.” (Lineaweaver v.

Plant Insulation Co. (1995) 31 Cal.App.4th 1409, 1416.

Where asbestos was not an intended ingredient in a talc product, plaintiffs bear the additional burden of showing that it is “more likely than not that the talc product was contaminated with asbestos during the time the plaintiff used it.” (LAOSD Asbestos Cases (2020) 44 Cal.App.5th 475, 489 [hereinafter “Gibbons”].) Evidence sufficient to support this finding includes “long term use of a talcum powder product alleged to contain asbestos by a mesothelioma sufferer who was not exposed to any other known source of asbestos above background asbestos levels that are ever-present in the environment, together with expert testimony reporting positive test results for the presence of asbestos in ore from the sources used to manufacture the product.” (Strobel v. Johnson & Johnson (2021) 70 Cal.App.5th 796, 815.) “In the absence of evidence explaining how asbestos in the source ore would have been eliminated in the process of mining and then milling talc, that is enough to support more than a mere possibility that the accused product... was a substantial factor in causing [plaintiff] to develop mesothelioma.” (Ibid.)

1. Defendant's

Burden: Factually Devoid

Walmart

moves for summary judgment on the grounds that Plaintiff's discovery responses and deposition testimony are devoid of facts supporting his claim that he was exposed to an asbestos-contaminated product for which it was responsible. (Motion at pp.13-15 [“Plaintiff Calabrese cannot state with certainty – nor does he possess the requisite supporting evidence – that he was actually exposed to talc-based products from Walmart, much less products contaminated with asbestos. To put it plainly, Plaintiff Calabrese cannot prove that any powder product purchased from Walmart actually contained asbestos fibers...Walmart propounded comprehensive contention discovery to Plaintiff Calabrese, which asked for the facts, documents, and witnesses supporting his causes of action for negligence and strict liability...Plaintiff Calabrese's responses do not have facts proving any container of talc he purchased from Walmart was actually contaminated with asbestos...Instead of producing the facts that support his contentions, Plaintiff Calabrese offered the contentions that supported his contentions...Plaintiff Calabrese cannot survive summary judgment by bootstrapping the unsupported contentions from his Complaint with the same unsupported contentions.”].)

In opposition,

Plaintiff argues that he presents sufficient evidence to show that triable issues of material fact remain over whether he was exposed to asbestos-contaminated talc for which Walmart was responsible. (Opp. at pp.13-14 [“Plaintiffs’ evidence shows...Plaintiff regularly used Equate baby powder when changing the diapers of his grandchildren between 2007 and 2015...Equate baby powder is Walmart’s ‘in house’ brand of baby powder...Walmart manufactured and sold Equate baby powder with talc from 1989 to 2016...Expert testing established that Equate baby powder body powder manufactured and sold between 2009 and 2015 contained asbestos... Expert testing established that talc mined from the southwestern portion of Montana, including talc sourced by Barretts Minerals, the exclusive supplier of talc used in Equate baby powder from 2005 to 2016, contained asbestos...Historic testing of talc mined from the southwestern portion of Montana, including by numerous suppliers of talc used in cosmetic talc products, confirmed the existence of asbestos...It is essentially certain that Plaintiff was exposed of asbestos from his use of Equate baby powder...Plaintiff was exposed to non-trivial amounts of asbestos from his use of Equate baby powder...Plaintiff’s exposure to asbestos from his use of Equate baby powder body powder was a substantial contributing factor to her development of mesothelioma.”].)

In reply, Walmart

argues that Plaintiff’s evidence is insufficient to raise a triable issue of material fact over whether he was exposed to an asbestos-contaminated product for which it was responsible. Specifically, Walmart argues that Plaintiff suffered minimal exposure to its Equate Baby Powder and that there is only speculative evidence that the Equate products were actually contaminated with asbestos. (Reply at pp.5-6 [“This Court is urged to follow the Berg analysis particularly where, as here, there is such minimal exposure. Plaintiff preferred using Johnson & Johnson Baby Powder...He testified to only using Equate Baby Powder 10% of the time compared to using Johnson & Johnson Baby Powder, which he used 90% of the time...Plaintiff diapered his grandchildren around ten to twelve times per week during the span of seven years, which means that Plaintiff only used Equate Baby Powder approximately one to two times each week for this purpose...This is the precise type of case to dispose of on summary judgment.”].)

i. Analysis

Walmart moves for summary judgment on the grounds that Plaintiff lacks

and cannot reasonably obtain evidence to support his contention that Plaintiff was exposed to asbestos by an asbestos-contaminated product for which Walmart was responsible. Specifically, Walmart argues that Plaintiff lacks and cannot reasonably obtain evidence that the Equate Baby Powder Plaintiff obtained from Walmart contained asbestos. Walmart first argues that Plaintiff cannot prove that the Equate products at issue were contaminated with asbestos because he has no personal knowledge that any bottle of Equate Baby Powder he purchased from Walmart actually contained asbestos. (SSUF 10, Ganasi Decl., Exh. 4 at 275:8-11 [“Q: Okay. Do you have any personal knowledge that any talcum powder products purchased from Walmart contained asbestos? A: No. I don’t know.”].) Walmart also argues that Plaintiff has not tested any container of Equate Baby Powder. (SSUF 11, Ganasi Decl., Exh. 4 at 276:1-3 [“Q: And have you ever tested any equate powder? A: No.”].)

Walmart also argues that Plaintiff’s factually devoid discovery responses show that Plaintiff lacks and cannot reasonably obtain evidence that the Equate products at issue contained asbestos. When Walmart asked Plaintiff to “state all EVIDENCE that supports [his] contention that any TALCUM POWDER PRODUCT sold by WALMART and to which [he was] EXPOSED contained asbestos,” Plaintiff responded as follows:

“Plaintiff was exposed to asbestos from approximately 2007 to 2015 as a result of using various personal cosmetic talc products, including but not limited to Equate baby powder. Equate baby powder was manufactured and bottled by Vi-Jon, LLC and by Perrigo Company and sold by Defendant Walmart, Inc. as its in-house brand of baby powder. Plaintiff would shake Equate baby powder onto his five grandchildren after baths and when he changed their diapers as babies. Plaintiff would shake Equate baby powder onto the front and back sides of his grandchildren, and also rub some Equate baby powder onto their chests to soothe them. The Equate baby powder came in a white bottle that was approximately 10 to 12 ounces, had a shaker top, and had the word “equate” written on the bottle. Plaintiff estimates he used Equate baby powder on his grandchildren approximately 10 to 12 times per week. Shaking the Equate baby powder onto his grandchildren when he changed their diapers created visible dust that Plaintiff inhaled. Plaintiff and his children purchased Equate baby powder from the Walmart store in Temecula, California.

Plaintiff’s

use of Equate baby powder caused Plaintiff to be exposed to asbestos fibers, particles and/or dust. Based on peer-reviewed published studies, reports, research and testing data, Defendant Walmart, Inc. knew, or should have known, during the period that Plaintiff used the Equate baby powder, that it featured asbestos contaminated talc, and that asbestos fibers were hazardous and could cause injury and death. Despite this knowledge, during the time that he used Equate baby powder, there were never any warnings, written instructions or recommendations concerning the hazards of asbestos on the packaging of the products. As a result, Plaintiff was unaware of his need for any type of safety devices to reduce his possible exposure to, or inhalation of, asbestos while using Equate baby powder. As a direct and proximate result of his exposure to asbestos through his use of Equate baby powder, Plaintiff developed and was diagnosed with malignant mesothelioma on or about May 16, 2025.

Plaintiff

identifies himself and his children, Reno Calabrese, Dario Calabrese and Annamaria Loven. Plaintiff further identifies the testimony of experts retained or to be retained by Plaintiff in this litigation. The identity and the nature of the testimony of Plaintiff's expert witnesses will be disclosed in accordance with the Code of Civil Procedure section 2034. Plaintiff further identifies the corporate representatives of Defendant Walmart, Inc. who will give deposition testimony in this case, and who have given deposition testimony in prior litigation to which Defendant Walmart, Inc. was a party."

(Ganasi

Decl., Exh. 12 at pp.3-6.) The response also identifies Walmart's written discovery responses, the testimony of Plaintiff's experts, Walmart's own documents, and the deposition testimony of Walmart's corporate representatives as evidence supporting his claims against Walmart. (Id.)

Walmart

meets its initial burden to prove that Plaintiff lacks and cannot reasonably obtain evidence that Plaintiff was exposed to an asbestos-contaminated product for which it was responsible. Because Plaintiff alleges that the Equate products at issue were made with talc contaminated with asbestos, Plaintiff's discovery responses were required to set forth facts from which the court can reasonably infer that it was "more likely than not that the talc product was contaminated with asbestos during the time" that Plaintiff used it. (Strobel, *supra*, 70 Cal.App.5th at p.815.)

Plaintiff's interrogatory responses

are devoid of facts supporting his contention that he was exposed to asbestos-contaminated Equate brand products. Although the responses state the Equate Body powder Plaintiff used was contaminated with asbestos, the responses fail to state the factual basis for this contention. (Ganasi Decl., Exh. 12 at pp.3-6.) Additionally, Plaintiff testified that he had no personal knowledge of whether the products contained asbestos and had not tested any Equate products. (Id., Exh. 4 at 275:8-276:3.) The discovery record contains no evidence showing that the products Plaintiff used were contaminated with asbestos. Plaintiff's factually devoid discovery responses support an inference that he lacks and cannot reasonably obtain evidence to support his claims against Walmart. Accordingly, Walmart meets its initial burden on summary judgment. The burden shifts to Plaintiff.

2.

Plaintiff's Burden

Plaintiff

fails to present sufficient affirmative evidence to support his contention that he was exposed to an asbestos-contaminated product for which Walmart was responsible. Plaintiff first argues that his evidence shows that he was exposed to Equate Baby Powder between 2007 and 2015 when he applied the powder to his grandchildren 10-12 times a week, a process which created dust that he breathed in. (AUMF Nos. 17-27, Kim Decl., Exh. 1 at 71:24-79:4 ["Q: You've also mentioned that you changed diapers on your grandchildren? A: Yes, correct...Q: Let me ask you, how many children does Annamaria have that you changed diapers on? A: Two....And then my son Dario has three...Q: Okay. Did you change diapers on both of Annamaria's children? A: Yes. Q: Did you change diapers on all three of Dario's children? A: Yes, we did....Q: Could you give me a general idea of how many diapers you would change in a given week on your grandkids? A: Oh, maybe in a week, 10, 12...Q: Okay. Do you remember on your grandkids what brand or brands of baby powder you used? A: Johnson & Johnson. Q: Okay. Any others? A: Mainly. And Equate was another one...Q: Could you give me a general idea of a percentage of Johnson & Johnson versus Equate? A: 90 percent of it. Q: Okay. And the other 10 percent would be Equate? A: 10 percent Equate...Q: When you would change diapers with –with the kids, shake it on their back, shake it on their front, what would happen? A: Oh, quite a bit of dust...Q: Could you see that dust? A: Oh, yeah. Q: Did you breathe the dust? A: Yes...Q: Where would Equate come from? A: Grocery store. Q: Where did you purchase it? A: Oh, Walmart...Q:...What was

contained within the Equate bottle? A: Talc. Q: How did you know that? A: It's on the bottle...Q: Is this Equate that you would purchase or is this stuff that Dario's family and Annamaria's family would purchase? A: Oh, yeah, they would. I would purchase if I was ava- -- if we had the time, and if not, they would purchase."].) Walmart's responses to Plaintiff's interrogatories show that it made Equate baby powders with talc between 1989 and 2016 but began making corn starch alternatives sometime before 2016. (AUMF Nos. 36, 38; Kim Decl., Exh. 4 at pp.4, 8.)

Walmart's

interrogatory responses also state that Vi-Jon, LLC ("Vi-Jon"), Premier Brands of America, Inc. ("Premier Brands"), and Perrigo Company ("Perrigo") manufactured Equate body and baby powders. (Kim Decl., Exh. 4 at p. 8.) The corporate representative for Vi-Jon, Alatheia Murray, testified that Vi-Jon used talc supplied by Luzenac or Imerys between 1999 and 2003 or 2004. (Kim Decl., Exh. 22 at 50:8-15.) Specifically, Vi-Jon purchased Sterline, Sterline 320Z, and Imperial 200 talc from Imerys or Luzenac. (Id. at 52:4-11.) Vi-Jon used some talc supplied by Barrett Minerals in 2003 and exclusively used Barrett Minerals ("Barrett") beginning in 2005. (Id. at 50:19-24.) Vi-Jon first purchased Ultra Talc 2000 from Barrett before exclusively purchasing Barrett's BP-210 between 2005-2016. (Id. at 51:2-25.)

Plaintiff's

expert, Dr. William Longo, tested 41 samples of Target Up & Up Talcum Powder manufactured by Vi-Jon between 2009 and 2015, including 28 samples provided directly by Vi-Jon. (AUMF No. 64; Kim Decl., Exh. 20 at ¶¶22-27 ["My laboratory, MAS, has now issued reports for the testing of aliquots from approximately 41 containers of Target Up & Up talcum powder products that cover the time period of 2009 through 2015 – years during which Vi-Jon manufactured and packaged the products for Target – for the possible presence of asbestos fibers...Using the above-described generally accepted methods, to date, we have identified regulated asbestos in 39 of 41 containers of Target Up & Up talcum powder products tested and reported on, including 26 of 28 containers received from Vi-Jon."].)

Plaintiff

also presents the expert testimony of Dr. Steven Compton, to show that talc mined in southwestern Montana contains asbestos. (AUMF Nos. 77-78; Kim Decl., Exh. 20 at ¶¶18,32.)

Plaintiff

relies on inadmissible evidence to show that the Equate baby powders Plaintiff used were contaminated with asbestos. Walmart's interrogatory responses establish that three manufacturers made the Equate products at issue, Perrigo, Premier Brands, and Vi-Jon. (Kim Decl., Exh. 4 at p.8.) The interrogatory responses contain no facts specifying when each manufacturer made Equate products for Walmart. Plaintiffs rely on Vi-Jon's interrogatory responses and the deposition testimony of David Mobley taken in *Prudencio v. Johnson & Johnson, et al.* to show that Perrigo is a predecessor of Vi-Jon. (AUMF Nos. 47-61; Kim Decl., Exhs. 12, 14.) However, the court sustained Walmart's objections to these exhibits. There is no evidence of whether or not the Equate products manufactured by Perrigo were contaminated with asbestos. Additionally, there is no evidence of when and what portion of the Equate products Premier Brands made or whether they contained asbestos. There is also no evidence of when Vi-Jon manufactured the Equate products at issue and what proportion of the Equate products Vi-Jon made as opposed to other manufacturers. If, for example, there was evidence that Vi-Jon was the primary or exclusive manufacturer for Equate products or that the products manufactured by Perrigo and Premier Brands were also contaminated with asbestos, then there would be sufficient evidence to support an inference that the products Plaintiff used were more likely than not contaminated with asbestos. Even if there is evidence that the Equate products Vi-Jon made were contaminated with asbestos, the evidence is insufficient to support an inference that the products Plaintiff used were more likely than not manufactured by Vi-Jon as opposed to another manufacturer.

As

for Plaintiff's expert testimony, Plaintiff relies on Mr. Mobley's deposition testimony to show that the ingredients in Target's Up & Up products were the same as Walmart's Equate products. (AUMF No. 69.) Plaintiffs also rely on documents produced in unrelated matters, and the deposition testimony of Vi-Jon's corporate representative, Jennifer Ward, taken in *Stratford v. Avon Products, Inc., et al.*, to show that the talcum powder products Vi-Jon manufactured for Walmart and Target were the same products with different labels. (AUMF Nos. 70-72, Kim Decl., Exhs. 9, 12, 21.) Again, the court sustained Walmart's objection to these exhibits. Without this evidence, there is no evidence that the Target talcum powders Dr. Longo tested are the same as the powder in the Equate products Plaintiff used. Dr. Longo's testimony is insufficient to show that the Equate products at issue contained asbestos.

Plaintiff

also relies on inadmissible evidence to show that Vi-Jon obtained its talc from asbestos-contaminated mines in southwestern Montana. Plaintiff relies on Ms. Murray's deposition testimony taken in unrelated matters (Kim Decl., Exhs. 16-17), Vi-Jon's answers to special interrogatories (Id., Exh. 14), and the deposition testimony of Coryn Kremers taken in an unrelated matter (Id., Exh. 13) to show that Vi-Jon's talc supplier, Barretts, sourced its talc from Montana. (AUMF Nos. 54-55.) The court sustained Walmart's objections to these exhibits. Without this evidence, there is no evidence that Vi-Jon obtained its talc from Montana mines. Thus, Dr. Compton's expert testimony on asbestos contamination in talc mined from Montana is insufficient to show that the Equate products manufactured by Vi-Jon were contaminated with asbestos.

Plaintiff's

remaining admissible evidence is insufficient to support his contention that he was exposed to an asbestos-contaminated product for which Walmart was responsible. Accordingly, Plaintiff fails to meet his burden on summary judgment. The motion for summary judgment is granted.

IV.

Conclusion

Walmart meets its burden to show that Plaintiff's discovery responses were devoid of facts demonstrating that he was exposed to an asbestos-contaminated product for which it was responsible. Plaintiff fails to present affirmative evidence to support his claim and met his burden on summary judgment. Walmart's motion for summary judgment is granted. Walmart's motions for summary adjudication are moot.